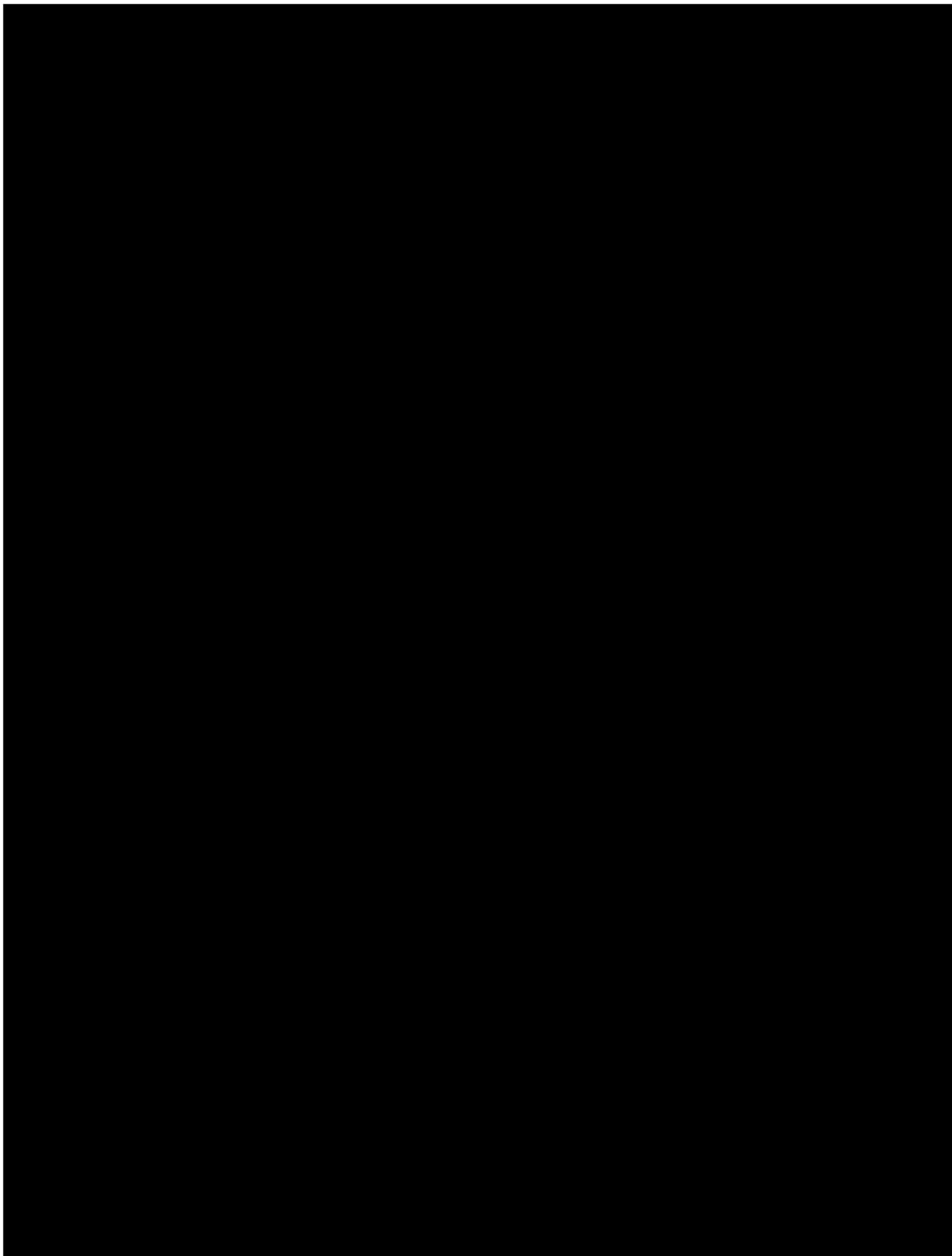




[Redacted]

Control No: MICC 2025-3

**JUSTIFICATION REVIEW DOCUMENT
FAR PART 6 JUSTIFICATION AND APPROVAL FOR OTHER THAN
FULL AND OPEN COMPETITION**

Program/Equipment: United States Army Yuma Proving Ground – Mission Test Support Services.

Authority: 10 U.S.C. 3204(a)(1) as implemented by FAR Part 6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

Amount: [Redacted]

Prepared by: [Redacted]

Contracting Officer: [Redacted]

Technical: [Redacted]

Requirements: [Redacted]

Reviews: I have reviewed this justification and find it adequate to support other than full and open competition.

Program Manager:
[Redacted] [Redacted]
[Redacted] [Redacted]

Small Business Professional:
[Redacted] [Redacted]
[Redacted] [Redacted]

Local Legal Counsel:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Director, MICC-Yuma Proving Ground:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

MICC Office of Counsel:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Director, Small Business Program:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Alternate Advocate for Competition:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

**FAR Part 6 Justification and Approval for Other than
Full and Open Competition**

1. Contracting Activity: United States Army Mission and Installation Contracting Command – Yuma Proving Ground (MICC-YPG), 301 C Street, Yuma, Arizona 85365.

2. Description of Action: The United States Army Test and Evaluation Command (ATEC) Yuma Proving Ground (YPG), Yuma Test Center (YTC) requests approval of a Cost-Plus-Award-Fee (CPAF) contract modification to contract W9124R-18-C-0001. The contract is awarded to TRAX International Corporation (TRAX), 8337 West Sunset Road, Suite 250, Las Vegas, NV 89113-2211. The Government projects award for the extension on 11 March 2025 and the modification will be incrementally funded using Fiscal Year (FY) 2025 Research, Development, Test & Evaluation (RDT&E) and Operations and Maintenance Army (OMA) funds.

3. Description of Supplies/Services: The Mission Test Support Services (MTSS) requirement provides specialized technical and engineering analyses; and studies related to the design, planning, coordination, execution and reporting for military test programs and expertise in support of the mission in developmental testing (DT), operational testing (OT) and Integrated DT/OT environment. The services include test support services in the following 10 functional areas: 1. Electronic Instrumentation; 2. Optical and Geodetic Instrumentation; 3. Metrology and Simulation; 4. Computation and Automation; 5. Test Operations and Maintenance; 6. Ammunition Management; 7. Technical and Engineering Services; 8. Range Management; 9. Communications and Information Management; and 10. Data Management and Management. A six-month contract extension consisting of an initial 3-month base option and three 1-month options periods are needed until a competed follow-on action is awarded and a successful vendor transition is completed.

Option Period 7: 01 APR 2025 to 30 JUN 2025
Option Period 8: 01 JUL 2025 to 31 JUL 2025
Option Period 9: 01 AUG 2025 to 31 AUG 2025
Option Period 10: 01 SEP 2025 to 30 SEP 2025

Total Value:

4. Authority Cited: 10 U.S.C. 3204(a)(1), as implemented by FAR 6.302-1(a)(2)(iii)(B), Only one responsible source and no other supplies or services will satisfy agency requirements when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency's requirements.

5. Reason for Authority Cited: Pursuant to FAR 6.302-1(a)(2)(iii)(B), when the supplies or services required by the agency are available from only one responsible source, or for DoD, NASA, and the Coast Guard, from only one or a limited number of responsible sources, and no other type of supplies or services will satisfy agency requirements, full and open competition need not be provided for, and services may be

deemed to be available only from the original source for the continued provision of highly specialized services when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency's requirements. Due to additional time required for the award of the follow-on action; no other contractor can assume the MTSS mission with full performance by 1 April 2025 without interrupting ongoing and near-term planned testing.

a. Background:

1) The current contract, W9124R-18-C-0001, was awarded on 30 May 2018 to TRAX for a four-year period of performance (base year and three option years). The MTSS contract supports approximately [REDACTED] and directly supports fielding of the latest technology improvements for the Army's critical warfighting equipment. The primary mission of YPG is to conduct integrated OT/DT systems testing and evaluation in natural environments. Testing in the natural environments often exposes performance deficiencies that artificial simulation methods fail to expose.

2) ATEC is the Army's premier test and evaluation organization within the Department of Defense (DoD) and is headquartered at Aberdeen Proving Ground (APG), Maryland (MD). Currently, ATEC has separate contracts at each of the major range test centers: Aberdeen Test Center (ATC), APG, Maryland; Electronic Proving Ground (EPG), Fort Huachuca, Arizona; West Desert Test Center (WDTC), Dugway Proving Ground (DPG), Utah; White Sands Test Center (WSTC), White Sands Missile Range (WSMR), New Mexico; and YTC, YPG, Arizona. To realize cost savings, ATEC requested that the Army Contracting Command (ACC) and the Mission and Installation Contracting Command (MICC) realign and consolidate its Major Range Support contracts. Support contracts for ATC and EPG have been awarded by ACC-APG, while WDTC, WSTC, and YTC support contracts were awarded by MICC.

3) ATEC, ACC, and MICC began considering solutions with historical competitive strategies, contract type, and socioeconomic set-asides with the formation of an Integrated Process Team (IPT). The recommended strategy outcome from the IPT was a 15-year, \$7 billion, single award Indefinite Delivery/Indefinite Quantity (IDIQ), CPAF contract where each of the installations would have an awarded task order to administer. [REDACTED]

[REDACTED] MICC-YPG assumed this responsibility in November 2022.

4) On 17 March 2023, a two-year extension contract modification consisting of two 1-year options with a cumulative period of performance from 01 April 2023 to 31 March 2025 was issued under Justification & Approval (J&A) no. MICC 2022-47 due to the customer's inability to develop the documentation needed to support a consolidated range contract. This extension was required to allow for time to conduct the procurement for the MTSS follow-on action.

5) The requirements packet for the MTSS follow-on was initiated by ATEC on 10 April 2023. In July 2023, the MICC Theater Support Center (TSC) was established as the Center of Excellence for awarding unique or complex requirements such as test range procurements. Headquarters MICC transferred the MTSS requirement to the MICC TSC in August 2023. Both the MICC YPG and TSC offices worked during the successive months to assist ATEC in producing an actionable procurement ready package. Nine revisions were necessary to finalize the Quality Assurance Plan and fifteen revisions were necessary to finalize the Performance Work Statement. Additionally, ATEC needed to complete a D&F for a contract type of other than fixed price contract. These completed documents formed the procurement ready package that ATEC needed to submit to MICC. It is important to note that the U.S. Government Integrated Process Team (IPT), including ATEC and the MICC offices spent the proper time to review every document for accuracy, incorporate acquisition strategy updates, mitigate and potential conflicts of interest to further reduce acquisition risk. ATEC and MICC had defined milestones for the document submittals, however, due to circumstances with information inputs, reviews, and approvals, the milestones were missed in pursuit of contracting excellence that would withstand all levels of scrutiny. Every missed milestone at the beginning of the timeline carried through to impact the target completion date. An actionable requirements packet for MTSS follow-on was received by the TSC from ATEC on 4 January 2024. The TSC has established aggressive milestones with the intent to keep the procurement on track for an award on or about 30 June. Similarly, the milestones did not include the 60-day phase-in for the new award and this time will now be accounted for in the acquisition process. Industry and U.S. Government colleagues alerted the MICC TSC to separate concerns during the spring and summer months that called for multiple contracting office factual reviews. The TSC team successfully managed to thoroughly analyze fact intensive situations for potential acquisition impacts. During the acquisition reviews the TSC looked to ensure that there was no access to non-public information and that the resulting full and open competition could be affirmed as fair and proper. The TSC team did not rush any reviews in order to ensure risk mitigation, thoroughness and impartiality. The expected MTSS solicitation release date slipped from the planned milestone of 1 April 2024 to 16 July 2024. The MTSS solicitation (W9124R-24-R-0004) was posted on 16 July 2024 and closed on 19 August 2024.

6) The major milestones as of 14 February 2025 are illustrated in the table below, but the outcome of the next incremental steps that transpire during the evaluation may significantly impact the award date and could delay it beyond June and subsequently impact the milestone events after contract award.

Milestone Description	Date
Source Selection Decision Document Approval	
Contract Award	
Vendor Transition Start	
Full Performance Begins	

b. Alternatives:

1) Suspension of Contract Support. The MTSS requirements are ongoing and critical to mission accomplishment. Suspension of contract support will cause critical disruption to the ATEC's mission and delay or stop the fielding of critical equipment for the Warfighter resulting in a degradation of Readiness. Therefore, this alternative is not viable.

2) Use of In-House Resources. ATEC lacks sufficient manpower, technical expertise, and resources to perform the required MTSS functions. The United States Army does not contemplate acquiring adequately trained personnel within the Government in the future. Attempting to initiate actions to increase the Government workforce to accomplish this mission would take years and result in mission failure during the time required to adequately recruit and staff a trained workforce. Therefore, this alternative is not viable.

3) Conduct a competitive acquisition for a bridge contract. A competitive bridge contract with a \$54 million value would require a minimum of one-year to solicit, evaluate, negotiate, award a new contract, phase-in a new contractor, transfer, and account for the large inventory of Government Furnished Property (GFP), verify data, obtain security clearances and allow for familiarization with ongoing tests. With one month to the expiration of the current contract, there is insufficient time to accomplish a competitive award. Additionally, there would be significant degradation in test support as contractors transition during testing. Any contractor other than the incumbent does not have sufficient equipment or trained manpower readily available on short notice to seamlessly assume the performance of these ongoing tests and services. An award to any other source would result in unacceptable delays ranging from 12-18 months in fulfilling the YTC's DT/OT mission. Over 23,000 lines of GFP valued at over \$131 million and spread over 3,000 square miles of the YPG test range would have to be inventoried and properly transferred. Further, this action is a temporary solution to changeover this requirement to the competitive award. Therefore, this alternative is not viable.

4) Extension of the current contract. Negotiating an extension of the current contract with the incumbent is the only viable solution to provide continuity of operations and

technical support without jeopardizing the ATEC ongoing test and evaluation mission. This option ensures there will be no degradation of services in this highly technical requirement. Award to any other source would result in a delay in fulfilling the agency's requirements and would not be in the best interest of the Government.

5) Impact if not approved: Disapproval of the J&A will result in a lapse in service and ATEC's failure to execute its OT/DT testing mission in accordance with the approved testing schedule and create barriers to efficient processes and the risk of impacting the outcomes and data collected from various test missions. As discussed above, attempting to compete this requirement would result in unreasonable delays and would cause mission failure for YPG due to the lack of services.

6. Efforts to Obtain Competition: The Contracting Officer will publish the notices required by FAR 5.201, Synopses of Proposed Contract Actions, and any bids or proposals received shall be considered.

a. Effective Competition: This is a sole source action; effective competition is not applicable.

b. Subcontracting Competition: Subcontracting goal achievement is an evaluated element for award fee and TRAX has met established goals. TRAX's established purchasing procedures include stringent guidelines for competing subcontracts. Any requirements that they deem to be sole sources are justified and approved by the Government prior to issuance of the subcontract. A review of TRAX's subcontract files is included in the monthly contract surveillance reports. The Government will request a revised subcontracting plan covering the extension period and will coordinate review of this document with the Small Business Professional and Procurement Center Representative as required by FAR 19.705-4(d)(7), Reviewing the subcontracting plan. The approved plan revision will be incorporated and made a material part of the contract as required by FAR 19.705-5(5), Awards involving subcontracting plans, prior to award of the modification. A copy of the award document will be provided to the Area Director for the Small Business Administration (SBA) Area Office where the contract will be performed as required by FAR 19.705-6(a) Post award responsibilities of the contracting officer, and a copy of the final negotiated subcontracting plan will be provided to the SBA Procurement Center Representative (PCR) as required by FAR 19.705-6(c).

7. Actions to Increase Competition: This is an interim action to allow continued performance with the incumbent contractor during the time necessary to solicit, evaluate, and negotiate the competitive award.

8. Market Research: Market research was conducted in accordance with FAR Part 10, Market Research. In accordance with the Defense Federal Acquisition Regulation Supplement (DFARS) 205.205-71 and DFARS PGI 206.302-1(d), a sources sought notice was posted to the SAM.gov website on 08 January 2025 and closed on 17 January 2025. No responses or other requests for information were received.

9. Interested Sources: As described in paragraph 8 above, to date no other sources have written to express an interest in the extension to the current contract. A proposal of this magnitude requires the contractor to invest significant time and dollars to develop the proposal, while knowing that the likelihood of success is uncertain. For a short-term contract, the risk is not appealing to contractors.

10. Other Facts:

a. Procurement History: The MTSS requirement has historically been awarded to large businesses under full and open competitive procedures with a CPAF contract type.

b. Solicitation, W9124R-13-R-0001, received four proposals and award W9124R-14-C-0004 was made to Jacobs Technology, Inc. (Jacobs) on 10 September 2014. TRAX filed a protest with the Government Accountability Office (GAO) (Docket B-410441.1) on 23 September 2014 disputing the award. A suspension of work notice was issued to Jacobs the same day. Over the next four years, the Army took corrective action in response to the protest with re-evaluations, re-awards, receiving 13 supplemental protests, and two appeals to the Court of Federal Claims (CoFC).

c. During this time contract W9124R-09-C-0003, which was awarded as a five-year contract (a base plus two, two-year option periods) was extended an additional four years and four months using 19 J&As. Five of the J&As used the authority 10 U.S.C. 2304(c)(2) and 14 of the J&As used the authority 10 U.S.C. 2304(c)(1).

d. On 30 May 2018, contract, W9124R-18-C-0001, was awarded to TRAX. On 19 June 2018, Jacobs filed another supplemental GAO protest (Docket B-410441.15) disputing the award. A Stop-Work order pursuant to FAR 52.233-3 Alt I, Protest after Award, was issued to TRAX on 20 June 2018 directing them to stop all performance on the contract immediately. The bridge contract, W9124R-18-C-1002, was issued to TRAX to continue performance in order to allow GAO to render a decision on the protest. The final protest was denied and a modification on contract W9124R-18-C-0001 was issued on 16 October 2018 for TRAX to resume performance. FAR 52.217-8, Option to Extend Services, was issued on 23 August 2022 to provide additional time for the competitive award. On 17 March 2023, a two-year extension contract modification consisting of two 1-year option periods (01 April 2023 thru 31 March 2025) was awarded under J&A no. MICC 2022-47 due to customer's inability to timely develop the documentation needed to support a consolidated range contract which resulted in their decision on 04 August 2022 to abandon the strategy.

e. Table of Previous Contracts:

Contract No.	Contr.	Period of Performance	Award Amount	# Proposals
W9124R-18-C-0001	TRAX	01 JUN 2018 - 19 JUN 2018 20 OCT 2018 - 30 MAR 2025	\$733M	4
W9124R-18-C-0002	TRAX	20 JUN 2018 - 19 OCT 2018	\$36M	Sole Source FAR 6.302-2
W9124R-14-C-0004	Jacobs	11-23 SEP 2014	\$306M	4
W9124R-09-C-0003	TRAX	01 JAN 2009 - 31 MAY 2018	\$569M	3
DAAD01-99-C-0003	ECIII	01 SEP 1999 - 31 DEC 2008	\$642M	2
DAAD01-94-C-0053	ECIII	01 OCT 1994 - 31 AUG 1999	\$112M	5

11. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

12. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. This determination will be made using a Cost/Price and most probable cost analysis. As a part of this basis, certified cost or pricing data will be required.

[REDACTED]

[REDACTED]

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

Approval

Based on the foregoing justification, I hereby approve the procurement of Mission Test Support Services on an other than full and open competition basis pursuant to the authority of Title 10 United States Code Section 3204(a)(1) as implemented by Federal Acquisition Regulation 6.302-1(a)(2), only one responsible source and no other supplies or services will satisfy agency requirements. [REDACTED]

[REDACTED] The approval is subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

[REDACTED]

WADE C. COLE
Senior Contracting Official

[REDACTED]